

Ramrati v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 21 May 2024 · 2024:AHC:91646-DB · Writ-C No. 17019 of 2024 · **Writ disposed; no quashing of s.126 notice; objections to EE under Supply Code.**

HEADNOTE

The Allahabad High Court declined to quash a notice of provisional assessment issued under Section 126 of the Electricity Act, 2003, and disposed of the writ with liberty to file an objection within two weeks, directing the Executive Engineer to decide it strictly in accordance with the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Ramrati filed a civil writ in the High Court of Judicature at Allahabad challenging a notice of provisional assessment dated 2 June 2023 issued by respondent no. 2 for making an assessment under Section 126 of the Electricity Act, 2003. The State of Uttar Pradesh was the first respondent. The petitioner sought quashing of that notice rather than first filing a statutory objection. Counsel appeared for the petitioner, the State, and the second respondent. The Division Bench took up the writ on 21 May 2024.

HOLDING-UNITS

INTERPLAY · EA2003::126

provisional s.126 assessment — writ vs objection

HOLDING

A notice of provisional assessment under Section 126 of the Electricity Act, 2003 is not to be quashed in writ. The consumer may file an objection within two weeks; the Executive Engineer shall then decide it strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 2-3

PRINCIPLE TAGS

s126-procedural-strictness-notice-and-hearing

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NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS AND QUANTUM OF THE SECTION 126 PROVISIONAL ASSESSMENT

The Court refused to quash the notice but did not examine whether unauthorized use was made out or what the assessment should be. ¶ 2-3